

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Katherine Higginbotham	Team: Team # 8	CCRB Case #: 200508600	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 07/22/2005 8:47 PM	Location of Incident: § 87(2)(b)	Precinct: 52	18 Mo. SOL 1/22/2007	EO SOL 1/22/2007	
Date/Time CV Reported Mon, 07/25/2005 2:44 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 07/27/2005 5:20 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Filastin Abedrabbo	23392	933550	052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Eduardo Matos	27879	930665	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POF Filastin Abedrabbo	Discourtesy: PO Filastine Abedrabbo spoke obscenely to § 87(2)(b)	§ 87(2)(b)
B.POF Filastin Abedrabbo	Abuse: PO Filastine Abedrabbo refused to provide her name and shield number to § 87(2)(b)	§ 87(2)(b)
C.POF Filastin Abedrabbo	Abuse: PO Filastine Abedrabbo seized § 87(2)(b)s property.	§ 87(2)(b)

Synopsis

On July 22, 2005, § 87(2)(b) called 911 to report that he was unable to gain entry into his apartment. Two officers, a male and a female, arrived on scene and went with § 87(2)(b) to his apartment. § 87(2)(b) removed two tools from his pocket and placed them on the floor in order to demonstrate that a substance was blocking his key from turning the lock on his apartment door. PO1, the female officer, picked up the tools. When § 87(2)(b) asked her to give them back, she said, “Well I fucking have it.” § 87(2)(b) told her that he needed the tools to show her what was going on, and she yelled, “Well, I fucking have it, and that’s just that. What the fuck are you gonna do (Allegation A)?” § 87(2)(b) asked the officers to leave without taking a report, and asked for PO1’s name and badge number. PO1 indicated that it was on her uniform, but § 87(2)(b) didn’t have a pen so he asked the officers to wait while he retrieved one. When he returned, the officers were driving away (Allegation B). PO1 did not return his tools (Allegation C).

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) is a § 87(2)(b)-old Black male with brown hair and brown eyes. He is 5’9” and weighs 155 pounds. § 87(2)(b) called 911 twice on July 22, 2005; the first time he reported that his keys would not open his door and the second time he stated that the previous unit that came to his apartment did not assist him. Approximately half an hour after he made this second call, he told the operator he was outside (encl.5, 6). § 87(2)(b) made his initial complaint regarding the misconduct of a New York City police officer to IAB on July 25, 2005 (encl.7). The CCRB received the complaint on July 27, 2005 (encl. 8). He spoke to the CCRB on August 16, 2005 (encl.9), and made his official CCRB statement on September 2, 2005 (encl. 10a-d). § 87(2)(g)

§ 87(2)(b) stated that on July 22, 2005 at approximately 8:47 p.m., he arrived at his home and attempted to open his apartment. When he made this attempt, he found that his keys would not go in any of the locks on the front door of his apartment. He called the police in order to file a complaint “in case it happened again” or in case he needed documentation if he missed work, and two male police officers arrived. They stayed for a few minutes but told § 87(2)(b) that they couldn’t make the complaint for him because they had received a call for another job. § 87(2)(b) called 911 and explained what had happened and was told that some other officers would be dispatched. After he made this call, he went to the neighbor that lives next door and explained that he couldn’t get into his apartment. The neighbor told him that there might be glue in the locks, and he provided him with two thin metal tools shaped somewhat like an ice pick. The tools were both approximately four inches long. § 87(2)(b) was unable to recall exactly what tools the neighbor gave him. § 87(2)(b) began to attempt to chip the glue out of his locks using the tools. § 87(2)(b) stated that he waited for about 45 minutes for the police. Although he originally stated that he saw the officers sitting outside for five minutes, when prompted by the CCRB, he said that he did not see them outside, but the dispatcher called his cell phone number and told him that they should have already arrived on the scene. § 87(2)(b) went downstairs to speak to a male and a female officer, who were sitting in a marked car. The female, PO1, was a “dark Hispanic” who stood about 5’2” and had a petite build. The male officer, PO2, was white and about 6’0”, 170-180 pounds. Both officers were in uniform. PO1 seemed to § 87(2)(b) like she “didn’t want to be there.”

PO1 asked what the purpose of the call to 911 was and when § 87(2)(b) explained his situation, PO1 asked for identification. She noted that the address on § 87(2)(b)’s identification was not the same as the address of his apartment. § 87(2)(b) said that it was, in fact, his apartment. The officers “acted as if they needed proof,” that the apartment belonged to him and § 87(2)(b) said, “Why would I call the police if I was trying to break into an apartment, if that’s what you’re insinuating?” After § 87(2)(b) made this comment, PO1 seemed to get angrier. Both of the officers exited the vehicle and they all went to the second floor of the building, where § 87(2)(b) lives. When they got to § 87(2)(b) where § 87(2)(b) lives, § 87(2)(b) took the two tools that his neighbor gave him out of his back pocket and he

placed them on the doormat. PO1 asked what the tools were for and § 87(2)(b) replied that he had been using the tools to remove glue from the locks. PO1 picked up the tools, and § 87(2)(b) said that he was going to need the tools. PO1 replied, “Well I fucking have it.” § 87(2)(b) told her that he needed the tools to show her what was going on, and she “yelled”, “Well, I fucking have it, and that’s just that. What the fuck are you gonna do? (Allegation A)” § 87(2)(b) told her that if she wasn’t going to help him and file a report, he didn’t need the officers to be there. He asked for PO1’s name and badge number. He expected the officers to write down their identification information, but PO1 pointed to her chest and said that the information was right on their uniforms. § 87(2)(b) asked them to wait so that he could get a pen. He went downstairs to a store that is about 150 feet from his apartment building and got a pencil. When he returned to his building, the officers were in the cruiser with their windows rolled up (Allegation B). When they saw him, they drove away, and PO1 waved and “smiled real big.” § 87(2)(b) stated neither of the officers filed a report. The next day, § 87(2)(b) got into his apartment using a ladder and filed a report with NYPD. The tools that PO1 picked up were not returned to § 87(2)(b) (Allegation C).

§ 87(2)(b) does not remember anything that PO2 said, although he does remember that PO2 asked him how he knew that there was glue in the locks. § 87(2)(b) stated that he believed that PO2 deferred to PO1. § 87(2)(b) stated during his CCRB interview that he does not know the name of any of his neighbors, and that the people in his building do not want to be involved with the police. The neighbor in apartment 20 came out of his apartment after the incident and told § 87(2)(b) that he heard PO1 yelling.

Results of Investigation

Officer Statements

PO Filastine Abedrabbo: Memobook

PO Abedrabbo’s memobook entries for the incident on July 22, 2005, stated the following:

At 2201 hours, there was a call for a possible destruction of property at § 87(2)(b). At 2220 hours, Complainant states that he lives at address and his wife is a Sergeant at the 041. He did not possess ID. At 2222 hours, PO Abedrabbo did a vertical patrol. Complainant pulls out knife and throws it on the floor. PO Abedrabbo picks it up for her safety. Complainant becomes upset while talking to his wife on the phone, states he no longer wants officers’ assistance and asks officers to “forget about it, I don’t want y’all help and I’m reporting you.” At 2228 Complainant Uncooperative. Complainant did not have ID and had a screwdriver and a knife, which PO Abedrabbo picked up from floor after he threw it there for safety reasons and she vouchered it. SPRINT § 87(2)(b) (encl.11a-c).

PO Filastine Abedrabbo: Property Voucher

On July 22, 2005, PO Abedrabbo created property voucher § 87(2)(b) for one “black metal handle knife” and one “electricity tester serial number § 87(2)(b). She vouchered these items for the purpose of “safekeeping.” Her remarks stated that the items were taken for “safety reasons” and vouchered for safekeeping after an uncooperative complainant for a 10-29 (past crime) at § 87(2)(b) refused assistance from the police (encl.12).

PO Filastine Abedrabbo: CCRB Statement

On September 28, 2005, the CCRB interviewed PO Filastine Abedrabbo (encl. 13a-b). She is a § 87(2)(b)-old White female with brown hair and brown eyes. She is 5’4” and weighs 125 pounds.

On July 22, 2005, PO Abedrabbo was patrolling Sector C with her partner, PO Matos. She was in uniform and in an RMP.

When PO Abedrabbo and her partner arrived on the scene, the complainant met them outside and explained that someone had crazy-glued his locks and he could not get into his apartment. PO Abedrabbo entered the building, carrying a complaint report in her hand, with her partner and they did a vertical patrol to look for trespassers in the complainant’s building. They met the complainant at his apartment door and PO Abedrabbo stated that the complainant was picking at the lock with a six-inch knife and a screwdriver. PO Abedrabbo asked for identification in order to verify that the apartment belonged to him. The

complainant stated that he did not have any ID, but that it was his apartment and he threw the knife and the screwdriver down to the floor. PO Abedrabbo later stated that she asked the complainant for his ID before he removed the knife and the screwdriver from his pocket, and when the complainant could not produce any, she told him that she needed his information verbally so that she could write the complaint, but he was too agitated. Then he removed the knife and screwdriver from his pocket and threw it on the ground. She also stated that she didn't know why he had the tools and she thought it was strange that he had them. Later in her interview, PO Abedrabbo stated that when she got to the complainant's apartment he was picking at the lock and she asked him what he was doing. This caused him to throw down the screwdriver and knife. Later, PO Abedrabbo also stated that the complainant began to pick the lock after she asked for ID.

When the complainant threw the knife and screwdriver to the floor, PO Abedrabbo picked up those items. PO Abedrabbo stated that the complainant was cursing. PO Abedrabbo stated that she did not feel threatened by the complainant's actions but that she was in a building known to be dangerous because it housed a lot of drug users and she feared that someone could walk by and pick it up. The complainant was on the phone with his wife during the incident. He became upset when PO Abedrabbo picked up the knife and screwdriver and he told the officers to "forget about it" and said that he didn't need their help and that he was going to report the officers. PO Abedrabbo stated that she tried to explain that she picked up the knife for her safety and the complainant's. PO Abedrabbo stated that she tried to give back the knife and screwdriver but that the complainant was agitated and "did not want to have a conversation." The complainant did not ask for PO Abedrabbo's badge and name but both were plainly visible and she stated that if he had asked she would have shown her name and badge. PO Abedrabbo told him that she would voucher the screwdriver and knife and he could pick them up. PO Abedrabbo and her partner went downstairs and drove away. They did not see the complainant after he told them to leave.

PO Eduardo Matos: Memobook

PO Matos' memobook entries for the incident on July 22, 2005, stated the following:

At 2201, received a 21 (past burglary). At 2220 hours, c/v stated he lived at residence. He had no ID and could not gain entry because of supposed glue in his locks. Became disturbed after we took weapons off the floor when c/v placed it on the floor. We did this for our safety. The c/v then stated forget the report I'm going to make a complaint. Sprint § 87(2)(b) (encl.14a-d).

PO Eduardo Matos: CCRB Statement

On October 30, 2005, the CCRB interviewed PO Eduardo Matos (encl.15a-b). PO Matos is a Hispanic male with black hair and brown eyes. He is 5'6" and weighs 200 pounds.

On July 22, 2005, PO Matos worked 1550 x 2335 with PO Abedrabbo, patrolling Sector C/D.

PO Matos stated that § 87(2)(b) came outside to meet him and his partner. § 87(2)(b) was on his cell phone and he told the officers that he had been burglarized. PO Matos asked him how the burglars gained entry and he stated that he could not gain entry himself. PO Matos told him that he was confused, and § 87(2)(b) explained that someone put glue in his locks. PO Matos told him that this was not burglary but § 87(2)(b) repeated that he had been burglarized. PO Matos asked him for ID and, as it did not give § 87(2)(b) as § 87(2)(b)'s address, PO Matos informed § 87(2)(b) that he was required to get a new ID if he moved. PO Matos stated that PO Matos and PO Abedrabbo went upstairs with him in order to investigate, and § 87(2)(b) was "getting an attitude" and would not hang up the phone. He said that he was talking to a family member who was an officer. § 87(2)(b) was saying to the person on the phone, "I can't believe the way your people act." When they got upstairs, § 87(2)(b) removed a knife and a screwdriver from his pocket and threw it onto the ground. PO Matos stated that he and his partner found this to be a threatening action. PO Matos does not recall if § 87(2)(b) said why he had the tools. PO Abedrabbo slid the doormat, where the knife and screwdriver were, away from § 87(2)(b) with her foot. PO Matos told him that this was being done for his safety and the officers' safety. § 87(2)(b) said, "Forget the report, I want to make a complaint." PO Matos offered § 87(2)(b) his name and shield number even though § 87(2)(b) did not ask for this information. Then § 87(2)(b) ran out of the building. At this point, PO Matos stated that PO Abedrabbo picked up the tools. PO Matos stated that he had the majority of the interaction with § 87(2)(b) not PO Abedrabbo. PO Matos stated that he did not see § 87(2)(b) again. PO Matos did not know whether PO Abedrabbo took the tools with her.

Attempts to Locate and ID Additional Witnesses

Although no one was in the hallway with § 87(2)(b) during his interaction with the two officers involved in this incident, the residents who live in the apartments on either side of § 87(2)(b) were home at the time. This is established by § 87(2)(b)'s assertion that he borrowed tools from the resident of § 87(2)(b) of § 87(2)(b) and his statement that the resident of § 87(2)(b) told him he heard yelling after the incident. § 87(2)(b) was uncooperative with the CCRB's attempts to get his neighbors names and contact information through him. Results for both § 87(2)(b) at § 87(2)(b) were negative for searches in Metrosearch, Cole's Directory and Verizon subpoenas. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Communications Records

SPRINT

On July 22, 2005, at 2047 hours, § 87(2)(b) called 911 to report that he had just arrived at home and his keys would not open his door. Sector M from the 52nd precinct responded. At 2145, § 87(2)(b) called 911 and stated that a unit came to his apartment and did not assist him, and that he believed that someone had tampered with his locks. He stated that his wife works for the 41st Precinct. At 2217, the male caller stated that he was outside. Sector C from the 52nd precinct responded. At 2233, the job was closed because the complainant was uncooperative (encl.16,17).

Police Documents

Property Index

The property index from the 052 precinct on July 22 confirms that PO Abedrabbo vouchered a screwdriver and knife on the date and time of the incident (encl.18).

052 Precinct Roll Call

The Roll Call from the 052 Precinct for Tour 3 on July 22, 2005, confirms that PO Eduardo Matos and PO Filastine Abedrabbo were assigned to Sector CD on the date and time of the incident (encl.19a-c).

Criminal History of the Civilian

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Substantiated CCRB Allegations which Resulted in the Imposition of Discipline

PO Abedrabbo has not had any CCRB allegations substantiated against her which have resulted in the imposition of discipline in her one year of tenure. However, on December 16, 2005, CCRB Panel 11B substantiated allegations of discourteous words, refusal to provide name and shield and one other abuse of authority. The NYPD has not yet made a final disposition on those allegations (encl.3).

Conclusions and Recommendations

Officer Identification

§ 87(2)(b) did not get the names of the officers with whom he interacted on July 22, 2005. He described the subject officer as a female Hispanic and the witness officer as a male White or Hispanic. The SPRINT from § 87(2)(b)'s second phone call to 911 showed that Sector C responded to the job. According to the Roll Call for that day and time, PO Abedrabbo and PO Matos were assigned to Sector C.

Undisputed Facts

Disputed Facts

Credibility

PO Abedrabbo

PO Matos

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§ 87(2)(g)

[REDACTED]

Allegations and Analysis

Allegation A: PO Filastine Abedrabbo spoke obscenely to § 87(2)(b)

§ 87(2)(b) told the CCRB that when PO Abedrabbo took his tools from the doormat in front of the apartment, he protested and she said, “Well I fucking have it.” § 87(2)(b) told her that he needed the tools to show her what was going on, and she “yelled”, “Well, I fucking have it, and that’s just that. What the fuck are you gonna do?” § 87(2)(g)

[REDACTED]

Allegation B: PO Filastine Abedrabbo refused to provide her name and shield number to § 87(2)(b)

[REDACTED]

§ 87(2)(b) stated that when he asked for the name and badge number of PO Abedrabbo, she did not allow him the opportunity to write it down. According to Patrol Guide Procedure 203-09, an officer must provide their name, rank, shield and command and “allow the person ample time to note this information”(encl.1). *NYPD v. PO Randy Pagan* found that because an officer “held out his shield” and one of the civilians in the case had a pen and paper, the guidelines set forth by the patrol guide had been met (2a-1). § 87(2)(g)

[REDACTED]

Allegation C: PO Filastine Abedrabbo seized § 87(2)(b)'s property.

It is undisputed that PO Abedrabbo took a knife and screwdriver that were in § 87(2)(b)'s possession. She stated that she did this “for my safety and his.” § 87(2)(g)

[REDACTED]

§ 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date